

TAB 6



Board of Education Report

File #: Rep-295-23/24, Version: 1

Define and Approve Six Proposition 39 Co-Located/Shared Facilities Improvement Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

June 4, 2024

Facilities Services Division

Action Proposed:

Define and approve six Proposition 39 Co-Located/Shared Facilities Improvement Projects, as listed on Exhibit A, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total combined budget for these projects is \$654,855.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

Background:

On September 14, 2021, the Board of Education (Board) approved the Proposition 39 Co-Located/Shared Facilities Improvement Initiative (“Initiative”), which authorizes staff to develop facilities improvement projects for District campuses that have a new Proposition 39 co-location with a charter school. The Initiative followed a one-year pilot program established by a Board Resolution (Increasing Fairness and Support for District Schools Sharing Campuses with Charter Schools) (“Pilot Program”). Under the Pilot Program, projects valued at up to \$100,000, and selected by mutual agreement by the District and charter co-located principals, were approved for District campuses that had a Proposition 39 co-located charter school in the 2019-2020 school year. The Initiative permits staff to develop projects for District campuses with a new Proposition 39 co-location in subsequent school years.

Project definition proposals for the Initiative are developed within the following guidelines:

- 1) All District K-12 schools and charter schools operating on a newly co-located District campus under Proposition 39 are eligible to participate.
- 2) Maximum of \$100,000 in Bond Program funds to be allocated to each eligible District campus. This is a one-time allocation for new Proposition 39 co-locations only.
- 3) If more than one District or charter school is operating on the same co-located District campus, the allocation value will not increase.
- 4) Staff will work with District and charter school administrators to define the scope of work to be completed within the budget allocation. Project selection must be a collaborative effort between the co-located principals.

- 5) Project definition proposals will be presented to the School Construction Bond Citizens' Oversight Committee (BOC) for consideration and to the Board for approval.

The project proposals contained in this Board Report meet these guidelines for schools with new co-locations in the 2023-2024 school year with the exception of Budlong Elementary School, which was a new co-location in the 2022-2023 school year.

Bond Oversight Committee Recommendations:

This item was considered by the BOC at its meeting on May 23, 2024. The presentation that was provided is included as Exhibit C. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

Expected Outcomes:

Staff anticipates that the Board will define and approve six Proposition 39 Co-Located/Shared Facilities Improvement Projects and amend the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed projects to help improve the co-located learning environment for students, teachers, and staff.

Board Options and Consequences:

Approval of the proposed projects will enable the District to provide facilities improvements that are designed to enhance the learning conditions for all students, both District and charter, on newly co-located District campuses. If the Board does not approve the proposed action, the projects will not be executed, and District campuses with new Proposition 39 co-locations will not receive the facilities improvements.

Policy Implications:

The proposal is consistent with the Initiative and the District's commitment to address unmet school facilities needs and provide students with a safe and healthy learning environment. The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan, Pillar 4 Operational Effectiveness, Modernizing Infrastructure by providing facilities improvements at schools.

Budget Impact:

The total combined budget for these projects is \$654,855, of which \$595,503 will be funded by Bond Program funds earmarked specifically for charter school facilities upgrades and expansions, and \$59,352 will be funded by Bond Program funds earmarked for Board District Priority projects.

Each project budget was prepared based on the current information known and assumptions about the project scope, site conditions, and market conditions. Individual project budgets will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of each project.

Student Impact:

The Proposition 39 Co-Located/Shared Facilities Improvement Projects will help mitigate challenges and further support safe and healthy learning environments by improving the conditions for approximately 5,800 students at these newly co-located District campuses under Proposition 39.

File #: Rep-295-23/24, Version: 1

Equity Impact:

District campuses that have a new Proposition 39 co-location with a charter school are eligible to participate in the Initiative.

Issues and Analysis:

This report includes medium-sized projects that can be executed in the next several months to meet the goals of the Initiative.

Attachments:

Exhibit A: Proposition 39 Co-Located/Shared Facilities Improvement Projects

Exhibit B: BOC Resolution

Exhibit C: BOC Presentation

Informatives:

None

Submitted:

05/01/24

File #: Rep-295-23/24, Version: 1

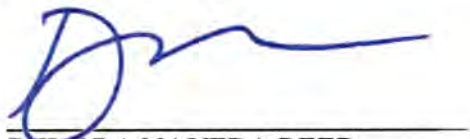
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:

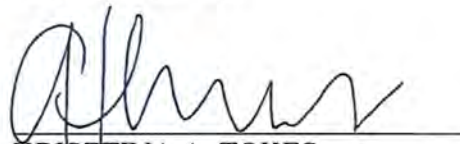

PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:


KRISZTINA A. TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

PRESENTED BY:


GREGORY A. GARCIA
Acting Director of Facilities Maintenance and Operations

EXHIBIT A
Proposition 39 Co-Located/Shared Facilities Improvement Projects

Item	BD	Region	School	Project Description	Project Budget	Anticipated Construction Start	Anticipated Construction Completion
1	1	S	Budlong ES	Upgrade Audio/Visual Equipment in Auditorium and Provide 2 Bottle Filling Stations	\$97,921	Q3-2024	Q4-2024
2	1	S	Harte Preparatory MS	Provide 4 Bottle Filling Stations	\$98,853	Q3-2024	Q4-2024
3	1	S	Manual Arts HS	Install Concrete Pavers, Benches and Landscaping	\$98,852	Q3-2024	Q4-2024
4	3	N	Armstrong MS	Gym Equipment Upgrades	\$99,905	Q3-2024	Q4-2024
5	5	E	West Vernon ES *	Upgrade Rolling Gates at the Northeast Parking Lot with Electronic Controls	\$159,352	Q3-2024	Q4-2024
6	6	N	Valerio ES	Upgrade Audio/Visual Equipment in Auditorium and Provide Pedestal Drinking Fountain with Bottle Filler	\$99,972	Q3-2024	Q4-2024
TOTAL					\$ 654,855		

*The additional funding for the project budget at West Vernon ES (\$59,352) will be provided by Board District 5 Priority funds earmarked for this project.

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

168

Margaret Fuentes, Chair

LAUSD Student Parent

D. Michael Hamner, FAIA, Vice-Chair

American Institute of Architects

Dr. Samantha Rowles, Secretary

LAUSD Student Parent

Robert Campbell, Executive Committee

L.A. Co. Auditor-Controller's Office

Scott Pansky, Executive Committee

L.A. Area Chamber of Commerce

Neelura Bell

CA Charter School Association

Chad Boggio

L.A. Co. Federation of Labor AFL-CIO

Jeffrey Fischbach

CA Tax Reform Assn.

Aleigh Lewis

L.A. City Controller's Office

Patrick MacFarlane

Early Education Coalition

Brian Mello

Assoc. General Contractors of CA

Dr. Clarence Monteclaro

Tenth District PTSA

William O. Ross IV31st District PTSA**Santa Ramirez (Alternate)**

Tenth District PTSA

Connie Yee (Alternate)

L.A. Co. Auditor-Controller's Office

Vacant

AARP

Vacant

L.A. City Mayor's Office

Joseph P. Buchman – Legal Counsel

Burke, Williams & Sorensen, LLP

Lori Raineri and Keith Weaver – Oversight ConsultantsGovernment Financial Services Joint
Powers Authority**Timothy Popejoy**

Bond Oversight Administrator

Perla Zitle

Bond Oversight Coordinator

RESOLUTION 2024-25**BOARD REPORT 295-23/24****RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE SIX PROPOSITION 39 CO-LOCATED/SHARED FACILITIES IMPROVEMENT PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education (Board) define and approve six Proposition 39 Co-Located/Shared Facilities Improvement Projects totaling \$654,855, as described in Board Report No. 295-23/24 attached hereto, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein; and

WHEREAS, District staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials; and

WHEREAS, On September 14, 2021, the Board approved the Proposition 39 Co-Located/Shared Facilities Improvement Initiative ("Initiative"), which authorizes staff to develop facilities improvement projects for District campuses that receive a new Proposition 39 co-location with a charter school; and

WHEREAS, The Initiative followed a one-year pilot program established by Board Resolution (Increasing Fairness and Support for District Schools Sharing Campuses with Charter Schools) ("Pilot Program"). Under the Pilot Program, projects valued at up to \$100,000, and selected by mutual agreement by the District and charter co-located principals, were approved for District campuses that had a Proposition 39 co-located charter school in the 2019-2020 school year; and

WHEREAS, The project definition proposals for the Initiative are developed within the following guidelines: (1) All District K-12 schools and charter schools operating on a newly co-located District campus under Proposition 39 are eligible to participate; (2) Maximum of \$100,000 in Bond Program funds to be allocated to each eligible

RESOLUTION 2024-25**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE SIX PROPOSITION 39 CO-LOCATED/SHARED FACILITIES IMPROVEMENT PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

District campus. This is a one-time allocation for new Proposition 39 co-locations only; (3) If more than one District or charter school is operating on the same co-located District campus, the allocation value will not increase; (4) Staff will work with District and charter school administrators to define the scope of work to be completed within the budget allocation. Project selection must be a collaborative effort between the co-located principals; (5) Project definitions proposals will be presented to the School Construction Bond Citizens' Oversight Committee (BOC) for consideration and to the Board for approval; and

WHEREAS, The project proposals contained in this Board Report meet these guidelines for schools with new co-locations in the 2023-2024 school year with the exception of Budlong Elementary School, which was a new co-location in the 2022-2023 school year; and

WHEREAS, The total combined budget for the Projects is \$654,855, of which \$595,503 will be funded by Bond Program funds earmarked specifically for charter school facilities upgrades and expansions, and \$59,352 will be funded by Bond Program funds earmarked for Board District Priority projects; and

WHEREAS, The District's Office of the General Counsel has reviewed the proposed Projects and determined that they may proceed to the BOC for consideration and recommendation to the Board of Education; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The BOC recommends that the Board of Education define and approve six Proposition 39 Co-Located/Shared Facilities Improvement Projects with a combined budget of \$654,855 and amend the Facilities SEP to incorporate therein, as described in Board Report 295-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the BOC's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the BOC and the District.

ADOPTED on May 23, 2024, by the following vote:

AYES: 10

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 3

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair



**Charter Facilities Upgrades and Expansions Program
Proposition 39 Co-Located/Shared Facilities Improvement Projects**

Presentation to the Bond Oversight Committee
May 23, 2024

Proposition 39 Co-Located/Shared Facilities Improvement Initiative

Background

171

- In 2019, the Board of Education adopted the Board Resolution entitled, *Increasing Fairness and Support for District Schools Sharing Campuses with Charter Schools*, establishing a one-year pilot program for then-current co-located District and charter schools to provide projects intended to improve the lives and learning conditions for students on these campuses (up to \$100,000 for each District campus).
- In 2021, the Board of Education approved this current Initiative, which authorizes staff to develop facilities improvement projects for District campuses that have a new Proposition 39 co-location and have never received a similar project. Project guidelines:
 - o All District K-12 schools and charter schools operating on a newly co-located District campus under Proposition 39 are eligible to participate.
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 - o If more than one District or charter school is operating on the same co-located District campus, the allocation value will not increase.
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Proposition 39 Co-Located/Shared Facilities Improvement Projects

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Questions?